

****21.12.2022.****

The Agency for the Protection of Personal Data is conducting supervisory proceedings against the data controller B2 Kapital d.o.o. due to a "leak" of personal data and will inform the public of the findings upon completion of the proceedings. We advise citizens to request access to their personal data and information from the relevant data controller (B2 Kapital d.o.o.), in accordance with the rights guaranteed by the General Data Protection Regulation, to determine whether their personal data has been affected by the data breach and to what extent. Contact information for the data protection officer at B2 Kapital: zastita-osobnih-podataka@b2kapital.hr.

Regarding frequent inquiries from citizens about compensation for damages in the event of a breach of their personal data; any person who has suffered material or non-material damage due to the processing of personal data contrary to the provisions of the General Data Protection Regulation has the right to compensation for material and non-material damage from the data controller or processor for the damage suffered. However, we emphasize that the Agency for the Protection of Personal Data is NOT the competent authority for compensation for damages. Anyone who has suffered non-material or material damage has the right to initiate proceedings to assert their right to compensation before the competent court (in the Republic of Croatia, this is the municipal court).

We also take this opportunity to warn citizens that in cases where personal data such as name and surname, OIB, email, mobile number, etc., fall into the hands of malicious actors, they should pay special attention to emails and messages they receive, as there is a high possibility that the attacker will attempt to obtain other personal data, such as credit card information. After security incidents in which personal data becomes accessible to individuals with unknown intentions, an increase in online fraud is expected, such as phishing. Phishing refers to online fraud in the form of fake emails that appear to be sent by legitimate organizations (for example, a bank or an online shopping site), which prompt the recipient to share personal, financial, or security information. In this way, fraudsters gain access to usernames, passwords, or credit card information. In such emails, individuals are most often asked to download an attached document or click on a link.

****WARNING!**** Do not respond to suspicious emails or open attachments! Do not click on links; instead, type the address into your browser! Do not respond to messages asking you to send a copy of your bank card, bank PIN, password, or any other strictly confidential personal data!

Frauds and attempted frauds can be reported to the competent authorities (police), which are authorized to act in the event of a possible criminal offense (misuse of personal data), and this is not within the jurisdiction of this Agency.

There is a wide range of online frauds about which information can be found in Europol's informational brochure: <https://www.europol.europa.eu/sites/default/files/documents/hr.pdf> and on the Ministry of the Interior's channel on Fraud and Cybersecurity.

More advice for self-protective behavior can be found at the link:
<https://azop.hr/savjeti-gradanima-za-samozastitno-ponasanje/>